

23STCV16559 23STCV16559

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-02

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Case Number: 23STCV16559 Hearing Date: September 2, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Alejandro urrutia Olivarez

;

Plaintiff,

vs.

General Motors, LLC

;

Defendant.

Case No.:

23STCV16559

Hearing Date:

September 2, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTion
for Attorney's Fees

MOVING PARTY: Plaintiff Alejandro Urrutia Olivarez

RESPONDING
PARTY: Defendant General Motors, LLC

Motion for
Attorney's Fees

The court considered the moving,
opposition, and reply papers filed in connection with this motion. The court
also considered the supplemental declaration filed on July 31, 2026 pursuant to
the court's order that same date.

REQUESTS
FOR JUDICIAL NOTICE

The court denies
the requests for judicial notice submitted alongside the moving papers because
the matters identified are not material to the court's disposition of the
motion. (Gbur v. Cohen (1979) 93 Cal.App.3d 296, 301 ("[J]udicial
notice . . . is always confined to those matters which are relevant to the
issue at hand."].)

DISCUSSION

Plaintiff Alejandro
Urrutia Olivarez ("Plaintiff") moves the court for an order awarding him
attorney's fees against defendant General Motors, LLC ("Defendant") in the
amount of \$34,504.50 pursuant to a settlement agreement.

First, the court

finds that Plaintiff is entitled to recover attorney's fees and costs from

Defendant pursuant to the Song-Beverly Act and the parties' settlement. (Civ. Code, § 1794, subd. (d) ["If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action"].) 2

Second, the court

finds that Plaintiff has established, as to the attorney's fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar of \$31,163.00

"[T]he fee

setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. .

. . . 2 The

reasonable hourly rate is that prevailing in the community for similar work. 2 The lodestar figure may then be adjusted, based on consideration of factors specific to the case,

in order to

fix the fee at the

fair market value

for the legal

services provided." 2 (PLCM Group v. Drexler (2000) 22 Cal.4th

1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64

Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial

court applies the lodestar method"].) 2

"[T]he

verified time statements of the attorneys, as officers of the court, are

entitled to credence in the absence of a clear indication the records are

erroneous." 2 (Horsford v. Board of Trustees of California

State Univ. (2005) 132 Cal.App.4th 359, 396.) 2 2 2 2 2 2

The court finds

that the reasonable hourly rates for Plaintiff's attorneys who performed work

in this action are as follows: (1) \$490.00 for attorney Joshua Fennell; (2)

\$410.00 for attorney Will Vollbrecht, and (3) \$350.00 for attorney Joseph

Kowalski. (Fennell Decl. ¶¶ 108-110; July 31, 2026 Fennell Supp. Decl. ¶ 3.)

The court has considered the billing records of Plaintiff's attorneys. (Fennell Decl., Ex. 16; May 12, 2026 Fennell Supp. Decl. ¶ 3; July 31, 2026 Fennell Supp. Decl. ¶ 3.) The court finds that Plaintiff's attorneys reasonably expended a total number of 64.5 hours (59.8 hours for Fennell; 3.6 hours for Vollbrecht, and 1.1 hours for Kowalski) to commence and prosecute this action and to prepare the pending motion.

The court therefore finds that Plaintiff has established a lodestar figure of \$31,163.00 ((59.8 hours x \$490.00 [Fennell] = \$29,302.00) + (3.6 hours x \$410 [Vollbrecht] = \$1,476.00) + (1.1 hours x \$350.00 [Kowalski] = \$385.00)).

Third, the court does not award Plaintiff fees for paralegal time expended on this matter because Plaintiff's moving papers do not specifically identify any paralegal fees which are sought.

ORDER

The court grants plaintiff Alejandro Urrutia Olivarez's motion for attorney's fees as follows:

Pursuant to Civil Code section 1794, subdivision (d), the court orders that plaintiff Alejandro Urrutia Olivarez shall recover from defendant General Motors, LLC attorney's fees in the total amount of \$31,163.

The court orders plaintiff Alejandro Urrutia Olivarez to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 2, 2026

Robert B. Broadbelt III

Judge of the Superior Court